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Judgment Sheet

IN THE LAHORE HIGH COURT, RAWALPINDI BENCH, RAWALPINDI

(JUDICIAL DEPARTMENT)

Writ Petition No.2284 of 2024

SNGPL through G.M.
Versus
Muhammad Awais SDO Highway

JUDGMENT

Date of Hearing	01.10.2024
For Petitioner	Ms. Nadia Hayat, Advocate.
For Respondent	Mr. Salman Khan Bayalay, Advocate.
	Mr. Asif Ikram, Assistant Attorney General.

SHAKIL AHMAD, J. This is a petition that has been filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 ("Constitution") by Sui Northern Gas Pipelines Limited (SNGPL) through its General Manager (G.M) to impugn order dated 14.05.2024 passed by learned Additional District Judge/ Judge Gas Utility Court, Rawalpindi, whereby petitioner has been directed to restore respondent's supply of gas subject to payment of restoration fee.

2. Facts, in brief, giving rise to the filing of instant petition are that Muhammad Awais (respondent) instituted a suit against SNGPL seeking permanent and mandatory injunction besides the prayer of restoration of Sui Gas connection/meter, precisely with the assertion that he was working as a Junior Clerk in the office of Highway Division, Rawalpindi and he applied for allotment of married accommodation, whereupon House No.1 Faizabad Murree Road, Rawalpindi was allotted to him on 03.09.2020 and after having occupied the house it transpired to respondent that gas connection was not available there, where-after he approached the petitioner whereupon he was informed that owing to some dues from earlier occupant, supply of gas could not be restored. Upon consistent and repeated requests made by the respondent for restoration of supply of

gas, instead of restoring gas supply, petitioner filed suit against SDO Highways before Gas Utility Court for recovery of outstanding amount to the tune of Rs.3,45,520/- with interest at bank rate till the realization of decretal/recoverable amount. According to respondent, having come to know about pendency of suit before the Gas Utility Court, Rawalpindi, respondent moved an application for restoration/ re-installation of Sui gas meter, however, said application was dismissed with the observation that respondent can file proper suit against petitioner, hence respondent filed suit seeking permanent as well as mandatory injunction and also filed an application seeking injunctive order to the effect that petitioner may be directed to restore the gas connection/meter till the final decision of the case. Petitioner appeared and contested the matter. Learned trial court while deciding application proceeded to pass the impugned order, hence this petition.

3. Learned counsel for the petitioner contends that in view of bar contained under section 29 of the Gas (Theft Control and Recovery) Act, 2016 (hereinafter referred to as '2016 Act') no injunctive order can be passed by Gas Utility Court either prohibiting or directing the petitioner from disconnecting the supply of gas of a premises or to restore the supply of gas to a premises unless the plaintiff at the time of filing the suit deposits with the Gas Utility Court the amount assessed against him by the Gas Utility Company. Upon Court query that whether impugned order has been complied with by the petitioner, learned counsel for the petitioner submitted that since the impugned order is against the provisions of section 29 of the 2016 Act, the same has not been complied with so far. As against this, learned counsel for the respondent argued that the Gas Utility Court rightly proceeded to pass the impugned order as neither any sum due was ever assessed against the respondent nor the respondent has ever been declared defaulter. Learned counsel for the respondent argued that when no amount whatsoever was outstanding against the respondent, there was no question of deposit of any amount by the respondent. He further argued that the conduct of the

petitioner by non-compliance of injunctive order passed by the trial court is contumacious.

4. Heard learned counsel for the parties at length. Record so annexed with the petition perused.

5. Learned counsel for the petitioner solely relied upon the provisions of section 29 of the 2016 Act in support of her stance that impugned order was passed in utter disregard of said provisions. Before dealing with the stance taken by learned counsel for the petitioner, it would be advantageous to reproduce hereunder section 29 of 2016 Act for the facility of ready reference: -

> "29**. Bar of jurisdiction**. – (1) Notwithstanding any other law for the time being in force, no Gas Utility Court shall make an order prohibiting the Gas Utility Company from disconnecting the supply of gas to a premises or requiring it to restore supply of gas to such premises if the consumer is in default and any such order made before the commencement of this Act shall cease to have effect:
>
> Provided that nothing contained herein shall apply to a case in which the plaintiff, applicant or appellant, within a period of thirty days of the aforesaid date or at the time of filing the suit, application or appeal, as the case may be, deposits with the Gas Utility Court the amount assessed against him by the Gas Utility Company and all further charges of the Gas Utility Company as and when they become due and in the event of his failing to do so, any order prohibiting the Gas Utility Company from discontinuing the supply of gas to the premises or requiring it to restore the supply of gas to the premises, if already made, shall cease to have effect.
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> (2) Where an amount has been deposited under sub-section (1), the Gas Utility Court shall direct it to be deposited in a scheduled bank in the name of the Gas Utility Company on an undertaking being furnished by the Gas Utility Company to the effect that in case the suit or appeal is decided against it, it shall repay the said amount to the plaintiff or appellant, as the case may be, with such reasonable return as the Gas Utility Court may determine."

Plain reading of above would suggest that while creating an embargo on passing of order either prohibiting Gas Utility Court from disconnecting the supply of gas from premises or requiring to restore supply of gas to a premises, a proviso has also been added to sub-section 1 of section 29 of 2016 Act. Upon reading conjointly the provisions of section 29(1) along with its proviso it evinces that if a plaintiff, applicant or appellant as the case may be, deposits a sum due so assessed against him by Gas Utility Company with the Gas Utility Court within a period of thirty days at the time of filing of suit, application or appeal, the Gas Utility Court may pass an order either prohibiting or requiring Gas Utility Company from disconnecting or restoring the supply of gas to plaintiff/applicant or appellant. Bar so contained in section 29 of the 2016 Act, thus would be attracted where plaintiff/applicant/appellant fails to deposit the sum so assessed against him by Gas Utility Company with the Gas Utility Court. In the instant case, undeniably no sum due has ever been assessed against the respondent by the petitioner, as such he has not been declared to be in default in any manner whatsoever. Provisions of section 29 of the 2016 Act are silent qua the situation where a person against whom no sum has been assessed by Gas Utility Company, opts to file suit being aggrieved by an action of Gas Utility Company by also praying for passing of injunctive order. Given this vacuum, Gas Utility Court may conveniently invoke its inherent jurisdiction and powers as granted by Section 151 of the CPC, in light of Section 5 of the 2016 Act, which stipulates that, subject to the provisions of the Act, Gas Utility Court in the exercise of its jurisdiction shall have all the powers vested in a Civil Court under the Code of Civil Procedure, 1908. It may therefore be resolved conveniently that where no sum due has been assessed by Gas Utility Company against a plaintiff, the Gas Utility Court despite the bar contained in section 29 of the Act, still has got inherent powers in view of section 151 of the CPC which mandates that nothing in the Code shall be deemed to limit or otherwise affect the inherent powers of the Court to make

such orders as may be necessary for the ends of justice and to prevent abuse of the process of the Court.

6. It may further be observed that clause contained under the head of 'PAYMENT' in the terms and conditions of the contract for the supply of gas as relied by the petitioner, shall not apply to the Government owned allocated premises, for which the company shall recover the dues, if any, from the previous occupant directly or through his parent department or through Estate Management Office. Relevant clause contained in the terms and conditions in contract for the supply of gas for domestic use is reproduced hereunder for the facility of ready reference: -

PAYMENT

(i) …….
(ii) …….
(iii) …….
(iv) …….
(v) The Consumer hereby affirms that no such connection at the premises where a gas connection is being provided, was previously disconnected, on account of non-payment of gas bills/charges etc, and understands that, in case the position is found otherwise, the Consumer shall be liable to clear/pay such dues/charges on der and as if such amount is due from and payable by him Provided that this clause shall not apply to Government owned allocated premises for which the Company shall recover the dues, if any, from the previous occupant directly or through his parent department or through Estate Management office.

(Emphasis supplied).

In view of above stipulation, it is yet to be resolved and determined by trial court whether petitioner had any authority to disconnect supply of gas of a premises that is owned by Government wherein gas is used merely for domestic/residential purpose by Government employees. Undeniably, the house that has been allotted to respondent is a Government owned premises and respondent can also not be considered as successor-in-interest as defined under clause 'n' of sub-section 1 of section 2 of the 2016 Act, whereby while defining the term successor-in-interest it has been specifically mentioned that the term successor-in-interest would not include a person who occupies such premises merely as a tenant. Admittedly, no sum due as defined under clause 'o' of sub-section 1 to section 2 of the 2016

Act has ever been assessed against the respondent as the respondent has not so far purchased or received gas for self-consumption. It has also not been denied that respondent is an employee in Highway department and he has been allotted House No.1 Faizabad Murree Road, Rawalpindi vide letter No.1478-80/C dated 03.09.2020. Admittedly, the petitioner has already filed suit for recovery of Rs.3,45,520/- against the earlier occupant of the house who said to have used the gas supplied by the petitioner.

7. Extraordinary constitutional jurisdiction of this Court undoubtedly is discretionary and equitable. If there was an order which might not be technically correct or there was any irregularity but it had not caused any miscarriage of justice and to the contrary was in furtherance of interest of justice and welfare of the person concerned, this Court would not take exception to the same while exercising its constitutional jurisdiction for the simple reason that this Court in exercise of its jurisdiction under Article 199 of the Constitution would always come in the aid of justice and would never come in the aid of injustice. Learned trial court has rightly proceeded to pass the impugned order keeping in view peculiar facts and circumstances of the instant case, as such the same is not open to any exception while exercising extraordinary constitutional jurisdiction of this Court.

8. This now brings me to yet another important and delicate proposition that whether any of the parties can raise and justify plea of non-compliance of an order passed by a court on the pretext that the same was against the law. As hinted earlier in paragraph No.3, during the course of arguments a query was put to learned counsel for the petitioner that impugned order directing petitioner to restore the supply of gas was passed on 14.05.2024 and no order qua suspension of the same was passed by this Court while issuing notice to the respondent, what refrained the petitioner from complying with the order dated 14.05.2024, learned counsel for the petitioner came up with the naïve argument that since impugned order was passed in derogation of the provisions of section 29 of the 2016 Act, the same

has not so far been complied with by the petitioner. This stance, on the face of it, is misconceived rather contumacious. When an injunctive order directing the petitioner to restore the supply of gas has been passed by the trial court, the same must have been obeyed by the petitioner so long as the order remains intact. In case '*Iftikhar Ali v. Javid Dastgir Mirza and 6 others*' **(PLD 1975 Lahore 126)**, while dealing with somewhat similar sort of moot point it was observed as under: -

> "5… . …When an injunction order has been issued, it must be obeyed; and the only remedy of the aggrieved party is to come up in appeal to a superior Court to have the order vacated. So long as the order stands and its operation has not been suspended by another Court or by the Court which passed the order, it will not be tolerated that any person should disobey that order. It is so because the administration of justice can only be effective if it has the means to enforce Court orders and to punish acts tending to impair public confidence in the authority or integrity of the Judges who administer the course of justice. In *Spokes v. Banbury Board of Bealth (1865) L R l Eq. 42, Wood, V-C.*, said that "*the simple and only view is that an order must be obeyed, that those who wish to get rid of that order must do so by the proper course, an appeal. So long as it exists, the order must be obeyed, and obeyed to the letter*,". Again, in *Knight v. Clifton (1971) 2 All E R 378 at /.393 (C A) Sachs, L.J.*, observed that "*when an injunction prohibits an act, that prohibition is absolute, and is not to be related to intent unless otherwise stated on the fact of the order . . . . . .*" In *Eastern Trust Co. v. Mckenzie Mann & Co. Ltd. 1915 A C 750 (P C),* Sir George Farwell observed that it should perhaps be added that an interim or interlocutory injunction has the same force as a final order, and that the same principles of obedience apply. It is thus settled that a person cannot disregard an order or an injunction of a Court, and if he, in fact, disobeys it, he does so at his peril.".
>
> (Emphasis supplied).

This view of the apex Court subsequently has been followed by this Court in case "*M/s Chaudhry Sugar Mills Ltd. v. The Province of Punjab, etc*" in ICA No.1456 of 2016. For the sake of arguments, even if the injunctive order was either erroneous or passed against the provisions of section 29 of the 2016 Act, it would hardly allow the petitioner to make itself a judge of the validity of the order passed against it, and by his own act of disobedience to consider the same as illegal. Such tendency or practice, if allowed to be prevailed, will weaken the public confidence on the integrity of courts while administering the cause of justice. Whether an order is right or wrong,

it is duty of the parties to obey the order or get the same set aside by the higher court. If a party to a proceeding considers that the court while passing an injunctive order has committed an error in the understanding of law applicable, or in its application, he can only resort to the remedy available to him in accordance with law. Non-compliance of injunctive order by a party on the basis of self-serving assumption that the same has been passed erroneously, would tend to the subversion of orderly administration of civil Government. In case *"The State of Bihar v. Rani Sonabati Kumari"* **(1961 AIR 221)** it was observed as under: -

> "If any party to the proceedings considers that any Court has committed any error, in the understanding of the law or in its application, resort must be had to such review or appeals as the law provides. When once an order has been passed which the Court has jurisdiction to pass, it is the duty of all persons bound by it to obey the order so long as it stands, and it would tend to the subversion of, orderly administration and civil Government, if parties could disobey orders with impunity. If such is the position as regard private parties, the duty to obey is all the more imperative in the case of Governmental authorities, otherwise there would be a conflict between one branch of the State polity, viz., the executive and another branch-the Judicial. If disobedience could go unchecked, it would result in orders of Court ceasing to have any meaning and judicial power itself becoming a mockery. When the State Government obeys a law, or gives effect to an order of a Court passed against it, it is not doing anything which detracts from its dignity, but rather, invests the law and the Courts with the dignity which are their due, which enhances the prestige of the executive Government itself, in a democratic set-up."
>
> (Emphasis supplied).

The obedience that has to be given to the orders of the Court, can hardly be made dependent on parties' opinion as to their propriety[1]. In case **"Gompers v. Bucks Stove & Range Co., 221 U.S. 418 (1911)** while dealing the similar moot point it was observed as under:-

> "If a party can make himself a judge of the validity of orders which have been issued, and by his own act of disobedience set them aside, then are the courts impotent, and what the Constitution now fittingly calls the "judicial power of the United States" would be a mere mockery. This power has been uniformly held to be necessary to the protection of the court from insults and oppression while in the ordinary exercise of its duty, and to enable it to enforce its judgments and orders necessary to the due administration of law and the protection of the rights of citizens."

[1] Mawazzam Ali Khan and others v. Shebash Chandra Pakrashi and another (AIR 1927 Calcutta 598)

(Emphasis supplied).

In case "**Howat v. Kansas, 258 U.S. 181 (1922)**", while deciding the similar sort of controversy it has been observed as under: -

> "----An injunction duly issuing out of a court of general jurisdiction with equity powers, upon pleadings properly invoking its action, and served upon persons, made parties therein and within the jurisdiction, must be obeyed by them, however erroneous the action of the court may be, even if the error be in the assumption of the validity of a seeming but void law going to the merits of the case. It is for the court of first instance to determine the question of the validity of the law, and until its decision is reversed for error by orderly review, either by itself or by a higher court, its orders based on its decision are to be respected, and disobedience of them is contempt of its lawful authority to be punished. "
>
> (Emphasis supplied).

The Supreme Court in case *"The University of Dacca v. Dr. A.N.M. Mahmood and Dr. K.T. Hussain"* **(PLD 1966 Supreme Court 802)** observed that even if ultimately, it may be found that the injunction order was erroneous or illegal, the liability of the University authorities to obey it, would not be affected.

9. Intentional and continuous non-compliance of the order of court by the petitioner on the basis of self-assumed opinion that the order has been passed in derogation of provisions of law, would hardly justify inaction on the part of petitioner qua the compliance of injunction order passed by the trial court. Such conduct would rather be legitimately considered as contumacious in the first place exposing the petitioner to the initiation of contempt proceedings which as per learned counsel for the respondent have been initiated before the learned trial court and the same are still to be adjudicated upon by the learned trial court, and at the same time such conduct of the petitioner disentitles the petitioner to the equitable and discretionary relief under Article 199 of the Constitution particularly where impugned order passed by trial court has been held to be passed in accordance with law. Therefore, no indulgence can be shown to the petitioner owing to his contumacious conduct that can hardly be condoned as extraordinary constitutional jurisdiction of this Court falls within the realm of equitable and discretionary jurisdiction.

10. The sequel of above discussion is that petition in hand is devoid of any force, the same is dismissed.

The research assistance provided by Mr. Adil Sarwar Sial, Civil Judge/Research Officer, Research Center, Lahore High Court Rawalpindi Bench, is appreciated.

(SHAKIL AHMAD)
JUDGE

Approved for reporting.

Judge

*M. Sajid**